

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval.

Similarly, the requested representative payment of \$7,500 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grants the motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. DOES 1 THROUGH 10, INCLUSIVE
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT (CONTINUED FROM 10.30.2025)**
FILED BY:
TENTATIVE RULING:
Appearance required, pending submission of signed agreement.

5. 9:00 AM CASE NUMBER: C24-00695
CASE NAME: JULIUN SKALIN VS. ENCHANT CHRISTMAS, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

6. 9:00 AM CASE NUMBER: C24-01590
CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO
***HEARING ON MOTION IN RE: AN ORDER DESIGNATING CASE COMPLEX**
FILED BY: JURADO, ANTHONY
TENTATIVE RULING:

Defendant Anthony Jurado's Motion for an Order Designating Case as Complex is **denied**.

Background

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy alleges that debris, fill material, and other man-made materials from Defendant Anthony Jurado's property were discharged into the creek, altered the flow of water, and caused erosion and damage to his property. The complaint includes causes of action for negligence, trespass, private and public nuisance, premises liability, and equitable indemnification, and seeks both damages and injunctive relief requiring cleanup and restoration of the creek. On September 13, 2024, Jurado filed a cross-complaint against Clancy asserting claims for indemnity, contribution, and declaratory relief, alleging that any damages Clancy sustained were caused primarily by Clancy or others and that Jurado is entitled to reimbursement or allocation if he is found liable.

On August 1, 2025, Plaintiff moved for leave to file a first amended complaint to conform his pleading to proof. The proposed amended pleading adds several negligence causes of action premised on alleged violations of the California Water Code and Contra Costa Municipal Code and a declaratory relief cause of action, joins Paula Jurado as a co-owner defendant, supplements factual allegations with information obtained in discovery, and corrects clerical errors.

Jurado now moves to designate this case as complex under California Rules of Court rule 3.400 and 3.403(b), asserting that Plaintiff's request for injunctive relief requiring removal of debris, remediation of contaminants, and stabilization of the creek bed will require coordination with several regulatory agencies, including the California Department of Fish and Wildlife, the San Francisco Bay Regional Water Quality Control Board, and the U.S. Army Corps of Engineers. Jurado further asserts that the case involves complex factual and legal issues relating to severe storm events in 2022–2023, creek-bank erosion, and potential liability for conditions created by others.

Clancy opposes the motion, arguing that the matter is a straightforward two-party dispute involving common tort law theories and no factor supporting complex designation is implicated.

Analysis

A "complex case" is "an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." (Cal. R. Ct. 3.400(a).) Cases involving certain types of claims are deemed "provisionally" complex. (Cal. R. Ct. 3.400(c).)

CRC 3.400(b) requires that courts consider the following factors when determining whether an action should be designated as complex: (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; (2) Management of a large number of witnesses or a substantial amount of documentary evidence; (3) Management of a large number of separately

represented parties; (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or (5) Substantial post judgment judicial supervision. (Cal. R. Ct. 3.400(b).)

The claims in this case do not fall within any of the provisionally complex categories and Defendant does not argue that the claims at issue are provisionally complex. None of the rule 3.400 factors or any other consideration persuades the court that that this case is complex.

1. The Case Does Not Involve Numerous Pretrial Motions Raising Difficult or Novel Legal Issues That Will be Time Consuming to Resolve

Much of the motion is devoted to enumerating legal and evidentiary issues Defendant states it intends to raise. (Motion pp. 9–11.) Specifically, Defendant argues the case should be designated complex because “[n]umerous regulatory agencies are asserting jurisdiction over the creek bed,” which Defendant suggests may “limit or even foreclose the Court’s jurisdiction to award any relief...that involves any modification to the creek bed, or even the creek banks,” asserting that the Court would “exceed its jurisdiction” if it issued an order inconsistent with federal or state regulatory authority. The motion characterizes these questions regarding the court’s ability to grant injunctive relief affecting a regulated watercourse as novel or complex legal issues warranting complex-case designation. Nothing in the motion, however, explains why determining the scope of the court’s own equitable authority presents an issue of exceptional judicial management. The question of what relief the court may issue is a routine matter, not a basis for treating the case as complex.

Defendant then argues the case should be designated complex because it purportedly raises numerous “unique” legal and factual issues that will require extraordinary pretrial management, including multiple duty determinations, such as whether Jurado may be liable for conditions created by a prior owner, whether he owes a duty to maintain or stabilize the creek, whether responsibility for creek clearing or restoration rests with one property owner or the other, and whether the property line affects the respective duties of the parties. The motion also lists a series of statutory-construction questions concerning whether Plaintiff falls within the protected class for various statutory schemes, including the Porter-Cologne Act, the Contra Costa Municipal Code, the Clean Water Act, as well as whether agricultural zoning will entitle Plaintiff to attorney’s fees. Defendant identifies prospective issues for summary-adjudication (such as punitive damages and treble-damages claims under Civil Code section 3346) and raises evidentiary questions relating to expert testimony, causal proof, and the sufficiency of Plaintiff’s observations regarding debris in the creek. The motion asserts that these matters will require pretrial motions or “mini-trials,” and justify complex-case designation. Many of these same issues appear in Defendant’s opposition to the motion to amend and will presumably be raised again by demurrer, underscoring that they are routine law and motion matters that do not warrant complex-case treatment. Nor does the prospect of expert opinions about erosion or a “100-year storm” make this case complex; courts regularly manage expert discovery on similar topics in cases such as this.

Although described as unique, the issues Defendant identifies in the motion are ordinary merits questions resolvable through standard pretrial motion practice, and do not suggest the kind of

difficult or novel issues contemplated by rule 3.400(b)(1).

2. The Remaining Rule 3.400(b) Factors Are Not Implicated

Because Defendant does not contend that any of the remaining Rule 3.400(b) factors apply, the Court addresses Factors 2 through 5 together. There is no indication that the case will involve management of an unusually large number of witnesses or a substantial volume of documents beyond what is typical in a tort or property-damage case. (Rule 3.400(b)(2).) There are only two parties to the litigation, and even if the pending motion to amend results in an additional defendant, the case will still involve only two sides represented by two law firms. (Rule 3.400(b)(3).) Defendant does not identify any related actions whose coordination would be required, and none appear to exist. (Rule 3.400(b)(4).) Finally, while Plaintiff seeks injunctive relief, nothing suggests that post-judgment enforcement would require ongoing judicial supervision of the type contemplated by Rule 3.400(b)(5).

3. Defendant's Late-Filed Reply Does Not Change The Result

Under CCP section 1005(b), Defendant's reply was due five court days before the December 4 hearing, that is, by November 25, 2025. Defendant did not file the reply (or the accompanying errata attaching previously omitted exhibits) until December 1, 2025. Although the Court could decline to consider the untimely filing, it has reviewed the submission here and concludes that it does not alter the analysis.

The reply does not identify any new issues bearing on complex designation. It identifies no additional pretrial motions raising difficult or novel legal issues, no expanded witness or document load, no additional parties, and no need for coordination with related actions. Nor does it show that post-judgment supervision would be anything other than ordinary enforcement of injunctive or monetary relief. The reply reiterates arguments regarding storm damage, debris, agency communications, and alleged dumping by a predecessor owner. Defendant asserts as a new matter that Plaintiff has been "unwilling" to participate in agency-encouraged remediation efforts. However, a party's alleged lack of cooperation in informal remediation discussions is not a basis for complex designation and does not suggest that this case requires exceptional judicial management.

Conclusion

Based on the Rule 3.400 factors and the totality of the circumstances, the Court concludes that this action does not require complex-case treatment. The motion is therefore denied.

7. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
HEARING IN RE: MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES & REQUESTS FOR PRODUCTION & WAIVE OBJECTIONS
FILED BY:
TENTATIVE RULING:

Defendant Guatam Patil moves to compel responses to Special Interrogatories (Set One) and Requests